

26PSCV00208 26PSCV00208

County: los-angeles

Division: Civil Law and Motion

Department: G

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Case Number: 26PSCV00208 Hearing Date: July 13, 2026 Dept: G

Defendant

Lung Ling Chen's Motion to Set Aside Default and Default Judgment, If Entered

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Defendant

Lung Ling Chen's Motion to Set Aside Default and Default Judgment, If Entered, is
CONTINUED.

BACKGROUND

This

is an action for breach of contract. On

May 25, 2021, defendant Lung Ling Chen (Chen) allegedly entered into a lease
with plaintiff SLX Property LLC (SLX) for real property in Hacienda Heights,
California. On June 30, 2022, Chen

allegedly moved out of SLX's property after failing to pay rent. On November 18, 2025, SLX allegedly sent Chen
a final demand letter for outstanding rent.

On

January 20, 2026, SLX filed the Complaint, alleging causes of action for (1)
breach of contract and (2) common counts.

On

April 1, 2026, the court entered default against Chen. On June 22, 2026, Chen filed this motion to set aside entry of default, which is unopposed.

The
motion is set for hearing on July 13, 2026.

ANALYSIS

Chen
moves to set aside the entry of default and vacate any resulting default
judgment. For the following reasons, the
court CONTINUES the motion.

Legal Standard

When
service of a summons has not resulted in actual notice to a party in time to
defend the action and a default has been entered against them, they may serve
and file a notice of motion to set aside the default and for leave to defend
the action. (Code Civ. Proc., § 473.5,
subd. (a).) A motion made under Section
473.5 is timely if it is filed within two years of the default judgment issued
against the party or 180 days of service of the notice of the default or
default judgment, whichever is earlier.
(Ibid.) Upon a finding by
the court that the party's lack of actual notice in time to defend the action
was not caused by their avoidance of service or inexcusable neglect, it may set
aside the default or default judgment on whatever terms as may be just and
allow the party to defend the action.
(Code Civ. Proc., § 473.5, subd. (c).)

Courts
only require "slight evidence" to support vacating a default and resolve all
doubts in favor of the party seeking relief.
(Kramer v. Traditional Escrow, Inc. (2020) 56 Cal.App.5th 13,
28.) "The only occasion for the
application of [S]ection 473 is where a party is unexpectedly placed in a
situation to [their own] injury without fault or negligence of [their] own and
against which ordinary prudence could not have guarded." (Hearn v. Howard (2009) 177

Discussion

As

a preliminary matter, the court addresses the notice requirement. “Before filing any document, a party must serve, by any method permitted by the Code of Civil Procedure, one copy of the document on the attorney for each party separately represented, on each unrepresented party, and on any other person or entity when required by statute or rule. The party must attach to the document presented for filing a proof of service showing service on each person or entity required to be served. . . .

The proof must name each party represented by each attorney served.” (Cal. Rules of Court, rule 8.817(a)(1)–(a)(2).)

Here,

Chen did not attach a proof of service to the application or file a separate proof of service with the application. (See Mot.) Furthermore, SLX did not file an opposition to contest the motion on the merits.

Therefore, the court CONTINUES the motion to set aside entry of default, ORDERS Chen to SERVE the MOTION on SLX if they have not done so already, and ORDERS Chen to FILE a PROOF OF SERVICE for SLX forthwith.

CONCLUSION

For

these reasons, the motion to set aside default and default judgment, if entered, is CONTINUED, defendant Lung Ling Chen is ORDERED to SERVE the MOTION on plaintiff SLX Property LLC if they have not done so already, and defendant Lung Ling Chen is ORDERED to FILE a PROOF OF SERVICE for plaintiff SLX Property LLC forthwith.